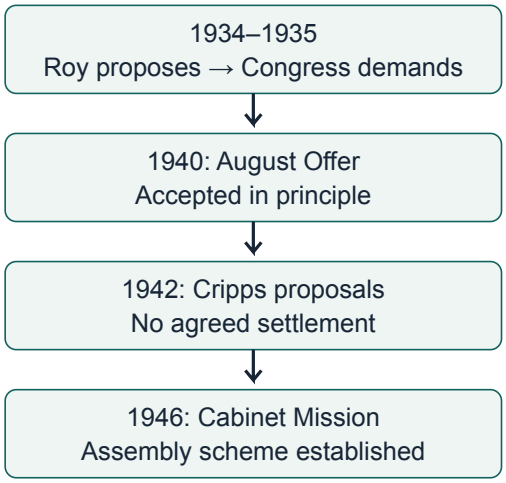
Making of the Constitution

1. Demand for a Constituent Assembly

- **1934:** M.N. Roy proposed the idea. **1935:** Congress officially demanded a Constituent Assembly.
- **1938:** Nehru demanded an Indian Constitution made without outside interference by an Assembly elected through adult franchise; Congress reiterated this in **1939**.
- **August Offer, 1940:** British acceptance in principle of Indians framing their Constitution.
- **Cripps proposals, 1942:** constitution-making after World War II; rejected by Congress and Muslim League for different reasons. The League sought Pakistan and separate constitution-making arrangements.
- **Cabinet Mission, 1946:** rejected two Constituent Assemblies in its original scheme; proposed the arrangement under which the Indian Assembly was formed.
- Mission members: **Pethick-Lawrence, Stafford Cripps and A.V. Alexander**. Arrived **24 March 1946**; Plan published **16 May 1946**.

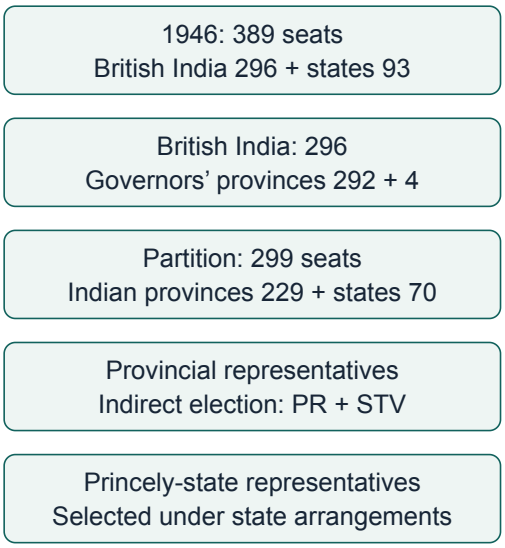


Demand, acceptance in principle, proposals, then the Assembly.

2. Composition and election: 389 → 299

- Constituted under the **Cabinet Mission Plan, 1946**; elections in **July–August**, Assembly formed by November.
- Original allocation **389 = 296 British India + 93 princely states**. British India: **292 from eleven Governors' provinces + 4 from Chief Commissioners' provinces**.
- Roughly **one seat per million population**; allocation proportional to population, including groups of smaller princely states.
- Provincial seats divided among **Muslim, Sikh and General** communities; General meant all other communities, not only Hindus.
- Each community's provincial assembly members elected its representatives by **proportional representation through the single transferable vote**. Princely-state representatives were selected/nominated under state arrangements.

- Thus **partly indirectly elected, partly nominated**; not directly elected by universal adult franchise. Provincial assemblies themselves rested on restricted property/tax and other qualifications under the 1935 Act.
- **296 British-India seats:** Congress **208**; Muslim League **73**; others/independents **15**. Princely-state representatives initially stayed away.
- Included diverse religious/social groups and **15 women**. **Mahatma Gandhi was not a member**.
- Partition reduced strength to **299 = 229 provinces + 70 princely states**, as members representing Pakistan's territories withdrew.



Do not confuse total allocation with attendance or signatures.

3. First meetings and office-holders

- **9 December 1946:** first meeting; Muslim League boycotted. The chapter records **207 members attending**.
- **Sachchidananda Sinha:** temporary chairman, following the practice of choosing an elder member.
- **11 December 1946: Rajendra Prasad** elected permanent President.
- **H.C. Mukherjee:** Vice-President, elected **25 January 1947**; **V.T. Krishnamachari:** second Vice-President, elected **16 July 1947**.
- **Trap:** V.T. Krishnamachari, Assembly Vice-President, is different from **T.T. Krishnamachari**, Drafting Committee member.

4. Objectives Resolution

- **Moved by Nehru: 13 December 1946. Adopted unanimously: 22 January 1947.**
- Set out the Constitution's basic philosophy; substantially inspired the eventual **Preamble**.
- **Independent sovereign republic** and a Union of British Indian territories, princely states and willing other territories.
- Units envisaged as autonomous, with residuary powers except powers assigned/inherent in the Union. **This proposal differs from the final Constitution's allocation of residuary legislative power to Parliament.**
- **Popular sovereignty:** government authority derived from the people.

- **Justice:** social, economic and political. **Equality:** status, opportunity and before the law.
- **Freedoms:** thought, expression, belief, faith, worship, vocation, association and action, subject to law/public morality.
- **Safeguards:** minorities, backward/tribal areas and disadvantaged classes.
- **Territorial integrity and sovereign rights** over land, sea and air; contribution to **world peace and human welfare**.

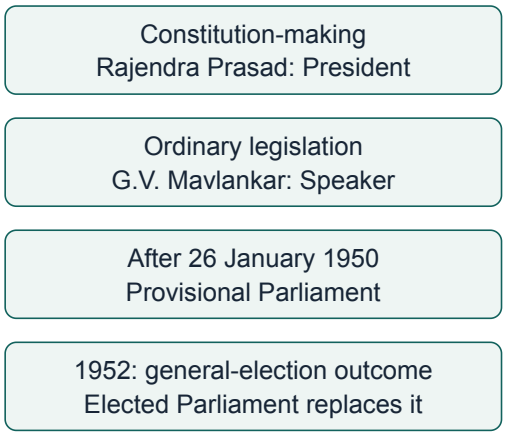


Four anchors: people, rights, Union, peace.

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5. Independence changed the Assembly's role

- Princely-state representatives began joining on **28 April 1947**: **Baroda, Bikaner, Jaipur, Patiala, Rewa and Udaipur**. More joined after the **3 June Mountbatten Plan**; Muslim League members from Indian territories also participated.
- **Indian Independence Act, 1947:** Assembly became fully sovereign in constitution-making; could alter/repeal British parliamentary laws applying to India.
- Acquired two functions on separate days: **constitution-making** and **ordinary lawmaking as the Dominion Legislature**.
- **Constituent body → Rajendra Prasad, President. Legislative body → G.V. Mavlankar, Speaker**; first separate legislative meeting **17 November 1947**.
- **26 January 1950:** constitution-making body gave way to **Provisional Parliament**, continuing until the elected Parliament in **1952**.
- Provisional Parliament ended **17 April 1952**; first elected Parliament's two Houses came into being in May.



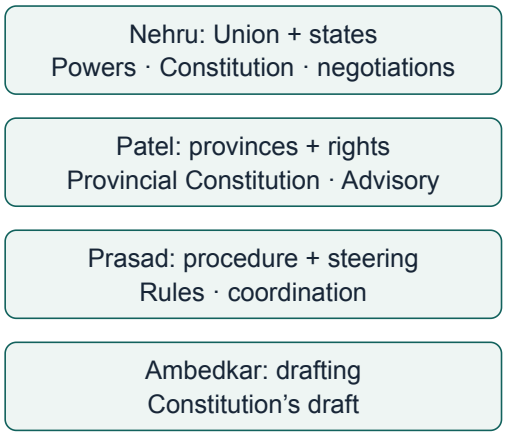
One membership performed distinct constituent and legislative roles.

6. Other functions and key dates

- **22 July 1947:** adopted National Flag.
- **May 1949:** endorsed India's continued Commonwealth membership.
- **24 January 1950:** adopted National Anthem and accorded the National Song its honoured status; elected **Rajendra Prasad first President of India**; members signed the Constitution.
- **26 November 1949:** adopted Constitution. **26 January 1950:** principal commencement and Republic Day.
- Constitution-making took **2 years, 11 months, 18 days** in the chapter's inclusive reckoning, ending at adoption—not at January commencement.
- **11 sessions; 165 sitting days**, including **114 days on the Draft Constitution**; studied constitutions of about **60 countries**. Cost approximately **₹64 lakh**.
- **284 members signed on 24 January 1950**. Correct the chapter's earlier sentence associating their signing with 26 November 1949. Parliament's historical account

7. Major committees: remember by chairman

- **Nehru:** Union Powers Committee; Union Constitution Committee; States Committee (negotiating with states).
- **Patel:** Provincial Constitution Committee; Advisory Committee on Fundamental Rights, Minorities, Tribal and Excluded Areas.
- **Ambedkar:** Drafting Committee.
- **Rajendra Prasad:** Rules of Procedure Committee; Steering Committee.
- These are the chapter's **eight major committees**; it also lists thirteen minor committees.
- **Patel's Advisory Committee—five subcommittees:** Fundamental Rights—**J.B. Kripalani**; Minorities—**H.C. Mukherjee**; North-East Frontier Tribal Areas and Assam Excluded/Partially Excluded Areas—**Gopinath Bardoloi**; Excluded/Partially Excluded Areas outside Assam—**A.V. Thakkar**.
- Fifth: **North-West Frontier Tribal Areas**; did not function for India's Assembly after partition. Listed members: **Khan Abdul Ghaffar Khan, Khan Abdul Samad Khan and Mehr Chand Khanna**; the supplied material does not identify its chairman.



Remember the eight major committees through four chairmen.

8. Minor committees and chairmen

- **Finance and Staff:** Rajendra Prasad.
- **Credentials:** Alladi Krishnaswami Ayyar.
- **House:** B. Pattabhi Sitaramayya.
- **Order of Business:** K.M. Munshi.
- **Ad hoc National Flag:** Rajendra Prasad.
- **Functions of the Constituent Assembly:** G.V. Mavlankar.
- **Ad hoc Supreme Court:** S. Varadachari.
- **Chief Commissioners' Provinces:** B. Pattabhi Sitaramayya.
- **Expert Committee on Union Constitution's Financial Provisions:** Nalini Ranjan Sarkar.
- **Linguistic Provinces Commission:** S.K. Dar.
- **Special Committee to Examine Draft Constitution:** Nehru.
- **Press Gallery:** Usha Nath Sen.
- **Ad hoc Citizenship:** S. Varadachari.
- **Not Assembly members:** Varadachari, Nalini Ranjan Sarkar and S.K. Dar. Chairing an expert committee did not necessarily require Assembly membership.

9. Drafting Committee

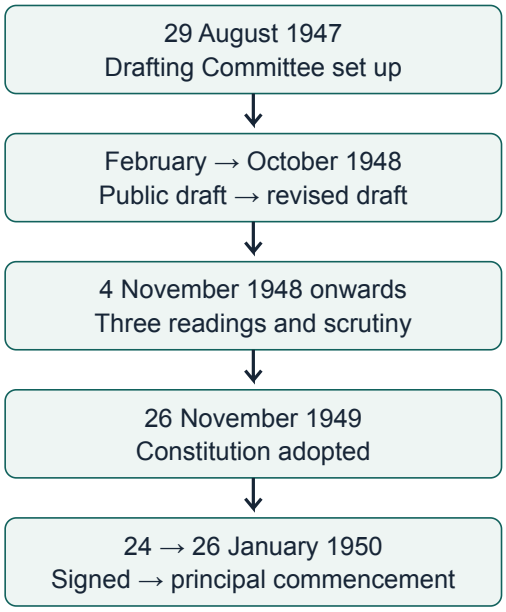
- Set up **29 August 1947**, chaired by **B.R. Ambedkar**, to prepare the Constitution's draft using the committees' proposals and constitutional adviser's work.
- **Seven original members:** Ambedkar; N. Gopalaswami Ayyangar; Alladi Krishnaswami Ayyar; K.M. Munshi; Syed Mohammad Saadullah; **B.L. Mitter**; **D.P. Khaitan**.
- **Replacements:** Mitter resigned due to ill-health → **N. Madhava Rau**. Khaitan died in 1948 → **T.T. Krishnamachari**.
- **B.N. Rau**, constitutional adviser, was distinct from **N. Madhava Rau**, committee member; B.N. Rau was not one of its seven members.

- First committee draft published **February 1948**; public comments invited. Revised draft published **October 1948** after about eight months of public consideration.
- Initial draft prepared in under six months; Committee sat for **141 days in all**. Do not confuse its sittings with the Assembly's 165 days.
- Ambedkar, then Law Minister, piloted the Constitution; widely called its **chief architect/Father of the Indian Constitution**, while constitution-making was collective work.

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10. Readings, adoption and signing

- **First reading:** Ambedkar introduced draft **4 November 1948**; general discussion through **9 November**.
- **Second reading:** clause-by-clause discussion, **15 November 1948–17 October 1949**.
- **Third reading:** began **14 November 1949**; Ambedkar moved the passing motion; adopted **26 November 1949**.
- **Amendments:** the chapter prints **7,653 proposed / 2,473 discussed**. Ambedkar's concluding account, reproduced by Parliament, records about **7,635 tabled / 2,473 actually moved**; use **7,635** for that account. Parliamentary compilation
- Original Constitution: **Preamble + 395 Articles + 8 Schedules**; these are original counts, not present totals.
- Preamble was considered after the constitutional articles had been settled, before final adoption of the whole document.
- **26 November = adoption/enactment. 24 January = signing. 26 January = principal commencement.**
- **Constitution Day/Samvidhan Divas:** 26 November; government notification **19 November 2015** designated the observance to promote constitutional values.



Adoption, signing and commencement are three distinct events.

11. Commencement and repeals

- Under **Article 394**, some provisions commenced immediately on **26 November 1949**: citizenship, electoral machinery, provisional/transitional arrangements and short title.
- Immediate provisions: **Articles 5–9, 60, 324, 366, 367, 379, 380, 388, 391, 392, 393, and Article 394 itself**. The chapter's running list omits 394; include it.
- Remaining provisions principally commenced **26 January 1950**.
- Why 26 January? **Purna Swaraj Day, 26 January 1930**, followed the Congress Lahore Session's December 1929 resolution.
- **Article 395:** repealed Indian Independence Act, 1947, and Government of India Act, 1935, with enactments amending/supplementing the latter; excepted the **Abolition of Privy Council Jurisdiction Act, 1949**.
- **Part XXII recall: 393—short title; 394—commencement; 394A—authoritative Hindi text; 395—repeals**. Official Constitution, Part XXII

12. Congress Experts Committee, 1946

- Congress appointed it **8 July 1946** to prepare material for the Assembly; **Nehru chaired** it. Distinct from the Assembly's Drafting Committee.
- Other members: **M. Asaf Ali, K.M. Munshi, N. Gopalaswami Ayyangar, K.T. Shah, D.R. Gadgil, Humayun Kabir and K. Santhanam**.
- **Krishna Kripalani** later co-opted as member/convenor; do not confuse with **J.B. Kripalani**, Fundamental Rights Subcommittee chairman.
- Sittings: **New Delhi, 20–22 July 1946; Bombay, 15–17 August 1946**.
- Discussed Assembly procedure, committees and constitutional objectives; prepared suggestions on autonomous areas, Centre/provinces, princely states and amending power; drafted a resolution resembling the Objectives Resolution.
- Granville Austin stressed its preparatory contribution to constitution-making.

13. Criticisms: assess, rather than repeat as facts

- **Not directly representative:** indirect election on limited franchise. Response: social/community diversity and broad deliberation, while acknowledging the absence of a direct universal-franchise mandate.
- **Not sovereign initially:** originated under a British scheme. Response: became sovereign after independence; distinguish the two periods.
- **Too slow/costly:** critics compared the American Convention's roughly four months. Response: India's detailed Constitution, partition, state integration, public comments and thousands of amendments increased complexity.
- **Congress dominance:** numerical dominance was real; Congress also contained diverse ideological positions. Granville Austin described the Assembly in the context of Congress's national predominance.
- **Lawyer/politician dominance:** criticism of social representation and technical, lengthy drafting; expertise also enabled detailed scrutiny.

- **Hindu predominance:** Simon and Churchill questioned community representation. Assess against minority participation and constitutional guarantees; majority composition alone does not establish that the Constitution excluded minorities.
- **Naziruddin Ahmad:** criticised the Drafting Committee as a **Drifting Committee**. This was a critical label, not its official name.

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14. People behind the document

- **Assembly symbol/seal:** elephant.
- **B.N. Rau:** constitutional/legal adviser. **H.V.R. Iyengar:** Secretary. **S.N. Mukherjee:** chief draftsman.
- **Prem Behari Narain Raizada:** handwritten English Constitution in flowing italic script.
- **Nandalal Bose** and Shantiniketan artists, including **Beohar Rammanohar Sinha:** decoration/illumination; Sinha particularly associated with the original Preamble's artwork.
- **Vasant Krishan Vaidya:** Hindi calligraphy; Hindi version illuminated/decorated by Nandalal Bose.
- **Distinguish:** adviser ≠ Drafting Committee chairman ≠ chief draftsman ≠ calligrapher.

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15. Authoritative Hindi text

- Original Constitution did not provide this specific authoritative-text mechanism.
- **58th Constitutional Amendment Act, 1987 → Article 394A, Part XXII**.
- **President** causes publication under presidential authority of the Constitution's Hindi translation, incorporating previous amendments and suitable language/style/terminology modifications, and Hindi translations of English constitutional amendments.
- Translation must carry the **same meaning as the original**; President causes suitable revision if interpretation difficulties arise.
- Texts published under the Article are authoritative **in Hindi for all purposes**. This concerns authoritative constitutional text, not a declaration of a national language. 58th Amendment text

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16. Women members: name and constituency

- **Madras/General:** Ammu Swaminathan; Dakshayani Velayudan; G. Durgabai (Durgabai Deshmukh).
- **United Provinces/General:** Kamla Chaudhri; Purnima Banerji; Sucheta Kripalani; Vijayalakshmi Pandit.
- **United Provinces/Muslim:** Begum Aizaz Rasul.
- **West Bengal/General:** Leela Ray; Renuka Ray.
- **Bombay/General:** Hansa Mehta. **Orissa/General:** Malati Chowdhury.
- **Central Provinces and Berar/General:** Rajkumari Amrit Kaur. **Bihar/General:** Sarojini Naidu.
- **Travancore and Cochin Union:** Annie Mascarene. **Total: 15**, across the Assembly's membership history.

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17. Membership tables: compact reference

- **Eleven Governors' provinces, original scheme:** Madras, Bombay, United Provinces, Bihar, Central Provinces, Orissa, Punjab, NWFP, Sind, Bengal and Assam.

- **Four Chief Commissioners' provinces:** Delhi, Ajmer-Merwara, Coorg and British Baluchistan.
- **1946 election detail:** Congress 208; Muslim League 73; Independents 8; **one each**—Unionist Party, Unionist Muslims, Unionist Scheduled Castes, Krishak-Praja Party, Scheduled Castes Federation, non-Congress Sikhs and Communist Party. **Total 296**.
- **1946 community categories in the chapter's table:** Hindus 163; Muslims 80; Scheduled Castes 31; Indian Christians 6; tribes 6; Sikhs 4; Anglo-Indians 3; Parsees 3. **Total 296**. These table categories differ from the three electoral groups; do not add SCs again to this table's Hindu figure.
- **Provincial allocation, 31 December 1947—229:** United Provinces **55**; Madras **49**; Bihar **36**; Bombay **21**; West Bengal **19**; Central Provinces and Berar **17**; East Punjab **12**; Orissa **9**; Assam **8**; Delhi, Ajmer-Merwara and Coorg **1 each**.
- **Princely states/groups—70:** Mysore **7**; Travancore **6**; Gwalior **4**; Baroda and Jaipur **3 each**; Jodhpur, Patiala, Rewa and Udaipur **2 each**; Alwar, Bhopal, Bikaner, Cochin, Indore, Kolhapur, Kotah and Mayurbhanj **1 each**.
- **Groups:** Sikkim–Cooch Behar **1**; Tripura–Manipur–Khasi States **1**; U.P. States **1**; Eastern Rajputana **3**; Central India including Bundelkhand/Malwa **3**; Western India **4**; Gujarat **2**; Deccan–Madras **2**; Punjab States **3**; Eastern States I **4**; Eastern States II **3**; Residuary States **4**.
- **Overall: 229 + 70 = 299.**

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18. Sessions and comparative drafting periods

- **Sessions 1–3:** 9–23 December 1946; 20–25 January 1947; 28 April–2 May 1947.
- **Sessions 4–6:** 14–31 July 1947; 14–30 August 1947; 27 January 1948.
- **Sessions 7–9:** 4 November 1948–8 January 1949; 16 May–16 June 1949; 30 July–18 September 1949.
- **Sessions 10–11:** 6–17 October 1949; 14–26 November 1949. Met once more for signing **24 January 1950**.
- **Historical comparison in the chapter:** USA—7 Articles, 25 May–17 September 1787, under 4 months; Canada—147 sections, October 1864–March 1867, about 2½ years; Australia—128 sections, March 1891–9 July 1900, about 9 years; South Africa—153 sections, October 1908–20 September 1909, about 1 year.
- These are selected historical drafting periods/documents, not counts or framing dates of each country's present constitutional order; cross-country durations reflect different processes.

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19. One-minute recall and mains framework

- **Roy proposed; Cabinet Mission provided scheme; provincial assemblies elected; princes selected.** Demand for adult franchise did not mean the Assembly was actually directly elected that way.
- **389 → 299; 296 + 93 → 229 + 70.** Congress's 208 is a 1946 election result, not the Assembly's final total.
- **Objectives:** 13 December moved → 22 January adopted. **Drafting:** 29 August committee → February draft → October revision → November debate.
- **Adoption 26 November 1949 → signing 24 January 1950 → principal commencement 26 January 1950.**
- **Prasad—Assembly; Ambedkar—Drafting; Rau—advice; Mukherjee—draftsmanship; Raizada—calligraphy; Mavlankar—legislature.**

- **Mains answer:** limited electoral origins → diverse participation/public comments → committee scrutiny and debate → independence and sovereignty → rights, democracy and social transformation. Balance limitations with evidence of deliberative legitimacy.
- Explain how the Objectives Resolution informed the Preamble, while some original proposals changed during deliberation; avoid treating every resolution clause as the final Constitution.